

MASTER SAAS SUBSCRIPTION AND DATA PROCESSING AGREEMENT

This Master SaaS Subscription and Data Processing Agreement ("Agreement") is entered into as of January 1, 2024 ("Effective Date") by and between:

Vendor: SecureCloud Technologies Inc., a Delaware corporation with its principal place of business at 500 Innovation Drive, San Francisco, CA 94105 ("Vendor"); and

Customer: HealthBridge Partners LLC, a New York limited liability company with its principal place of business at 200 Medical Plaza, New York, NY 10001 ("Customer").

Collectively referred to as the "Parties."

RECITALS

WHEREAS, Vendor operates a cloud-based software platform for healthcare data management; and WHEREAS, Customer desires to subscribe to said platform and process certain Protected Health Information (PHI) and personal data thereon; NOW THEREFORE, in consideration of the mutual covenants herein, the Parties agree as follows:

ARTICLE 1 - TERM AND RENEWAL

1.1. Initial Term

This Agreement shall be terminated in accordance with the terms set forth herein.

1.2. Renewal

Upon expiration of the initial term, this Agreement shall automatically renew for successive periods unless terminated in writing by either party at the end of the term.

1.3. Payment Terms

Customer shall pay to Vendor the fees set forth in the attached schedule, except as expressly provided otherwise, which shall be applicable only to the extent of the actual services rendered.

ARTICLE 2 - SERVICES AND OBLIGATIONS

2.1. Services

Vendor shall provide the services described in the attached schedule with reasonable skill, care, and diligence, and shall maintain the confidentiality of the documentation and data processed by the platform.

2.2. Customer Obligations

Customer shall ensure that its use of the platform complies with applicable laws, regulations, and industry standards, and shall indemnify Vendor for any claims or damages arising from its use.

2.3. Uptime SLA

suspected security

Vendor commits to 99.9% uptime. Service credits for downtime.

ARTICLE 3 - BUSINESS ASSOCIATE AGREEMENT (BAA)

3.1. BAA Incorporation

This Article covers Privacy, Portability and Economic and

3.2. Permitted Uses and Disclosures of PHI

Vendor may use PHI in accordance with the Agreement, as otherwise permitted in a manner that would not be enumerated here.

3.3. Safeguards for PHI

Vendor shall implement measures to protect PHI in accordance with 164.310, and as required under applicable law.

3.4. Subcontractor Agreements

Vendor shall ensure that all subcontractors protect PHI on behalf of the organization under the same restrictions as the current registered provider.

3.5. Individual Rights

Vendor shall: (a) respond to access requests; (b) assist in amending PHI; and (c) comply with CFR Sec. 164.506.

3.6. Breach Notification

Vendor shall notify the organization in the case of a breach no later than 60 days. The notification shall include a description of the breach, the individuals affected, and the steps taken to contain the breach. A documented breach analysis shall be provided.

3.7. Return or Destruction of PHI

Upon termination or expiration, the Vendor shall return or destroy all PHI and limit future use.

reasons therefo

ARTICLE 4 - DATA PROCESSING AGREEMENT (GDPR)

4.1. Scope and Role

For the purpos
Data Controller
Agreement (DP

4.2. Lawful Basis and Purpose Limitation

Vendor shall pr
purposes expli
processing und
specified. Purpo

4.3. Data Subject Rights

Vendor shall as
access (Art. 15)
objection (Art. 2

4.4. Sub-processor Approval

Vendor shall no
Customer. Ven
opportunity to o
days before any

4.5. Data Breach Notification

In the event of
later than twent
seventy-two (72

4.6. Security of Processing

Vendor implem
including: AES
authentication;
response plan r

4.7. Records of Processing Activities

Vendor maintai
required by GD
retention sched

4.8. Return or Deletion of Data

Upon terminatio
data and delet
storage of the p

ARTICLE 5 - SOC 2 TYPE II COMPLIANCE

5.1. Security Certification

5.2. Access Controls

Vendor holds Confidentiality Customer may

5.3. Logging and Monitoring

Vendor enforces multi-factor authentication upon employees

5.4. Business Continuity

Vendor maintains of twelve (12) real-time alerting

5.5. Vendor Risk Management

Vendor maintains semi-annually. one (1) hour. G

5.6. Change Management

Vendor conducts Customer data request.

All changes to change request post-deployment

ARTICLE 6 - CONFIDENTIALITY

6.1. Obligations

Each Party shall any third party v to protect its own

6.2. Exclusions

Confidentiality of no breach of the (c) is independent disclosed by law

ARTICLE 7 - INTELLECTUAL PROPERTY

7.1. Vendor IP

Vendor retains This Agreement Services during

7.2. Customer Data

Customer retail
Customer Data

ARTICLE 8 - LIABILITY AND INDEMNIFICATION

8.1. Limitation of Liability

EXCEPT FOR
GROSS NEGLIGENCE
CONSEQUENT
FEES PAID IN

8.2. Mutual Indemnification

Each Party shall
Agreement, not
notice and coop

ARTICLE 9 - GOVERNING LAW

9.1. Governing Law

This Agreement
principles. Disputes
Francisco, CA.

ARTICLE 10 - GENERAL PROVISIONS

10.1. Entire Agreement

This Agreement
supersedes all

10.2. Amendment

Amendments m

10.3. Severability

If any provision

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

SecureCloud Technologies Inc.

By: _____

Name: Jennifer Walsh

Title: Chief Executive Officer

Date: January 1, 2024

HealthBridge Partners LLC

By: _____

Name: Dr. Michael Chen

Title: Chief Information Officer

Date: January 1, 2024